

Amendment No. 1 to SB0719

White
Signature of Sponsor

AMEND Senate Bill No. 719*

House Bill No. 704

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-4-902(11), is amended by adding the following as a new subdivision:

(D) For purposes of the Wilder-Naifeh technical skills grant and the Wilder-Naifeh reconnect grant, a private, nonprofit technical school that:

- (i) Has had its primary campus domiciled in this state for at least seventy-five (75) consecutive years;
- (ii) Is accredited by the Council on Occupational Education; and
- (iii) In addition to offering diploma, certificate, and associate degree programs, offers a baccalaureate degree through an articulation agreement with a regionally accredited postsecondary institution;

SECTION 2. Tennessee Code Annotated, Section 49-4-902(13), is amended by adding the following as a new subdivision:

(C) For purposes of the Wilder-Naifeh technical skills grant and the Wilder-Naifeh reconnect grant, a curriculum of courses leading to a certificate or diploma at an eligible independent postsecondary institution, as defined in subdivision (11)(D).

SECTION 3. Tennessee Code Annotated, Section 49-4-902(46), is amended by deleting the subdivision and substituting:

(46) "Wilder-Naifeh technical skills grant" means a grant funded from net proceeds of the state lottery and awarded under this part for coursework in an eligible program of study at a Tennessee college of applied technology operated by the board of

regents of the state university and community college system or at an eligible independent postsecondary institution as defined in subdivision (11)(D).

SECTION 4. Tennessee Code Annotated, Section 49-4-921, is amended by deleting subsections (a) and (b) and substituting:

(a) To be eligible for a Wilder-Naifeh technical skills grant, a student seeking a QNDC, diploma, or certificate at a Tennessee college of applied technology operated by the board of regents of the state university and community college system or at an eligible independent postsecondary institution as defined in § 49-4-902(11)(D) must:

- (1) Meet the requirements of §§ 49-4-904 and 49-4-905(a); and
- (2) Be admitted to the institution in an eligible program of study leading to a certificate or diploma.

(b) A minimum number of hours of enrollment is not required for eligibility for a Wilder-Naifeh technical skills grant under this section, but a student receiving a grant must maintain satisfactory academic progress in accordance with the standards and practices established by the institution at which the student is enrolled to continue the grant. If a student fails to maintain satisfactory academic progress, then the student loses the student's Wilder-Naifeh technical skills grant. A student who loses a Wilder-Naifeh technical skills grant must not receive an additional award under this section.

SECTION 5. Tennessee Code Annotated, Section 49-4-923, is amended by deleting subsections (b) and (c) and substituting:

(b) To be eligible for a Wilder-Naifeh reconnect grant, a student seeking a diploma or certificate at a Tennessee college of applied technology operated by the board of regents of the state university and community college system or at an eligible independent postsecondary institution as defined in § 49-4-902(11)(D) must:

- (1) Meet the requirements of §§ 49-4-904 and 49-4-905(a);
- (2) Be admitted to the institution in an eligible program of study;

(3) Complete and file the FAFSA. Students must complete the FAFSA each academic year in which they seek to receive the Wilder-Naifeh reconnect grant; and

(4) Be an independent student as determined by the FAFSA.

(c)

(1) A student who receives a Wilder-Naifeh reconnect grant under this section must be enrolled as a full-time student. If a student fails to maintain satisfactory academic progress, then the student loses the Wilder-Naifeh reconnect grant. A student who loses a Wilder-Naifeh reconnect grant must not receive an additional award under this section.

(2) As used in this subsection (c), "full-time student" means a student who is enrolled in a minimum of twelve (12) semester hours, or a student who is enrolled in a full-time program at a Tennessee college of applied technology or at an eligible independent postsecondary institution as defined in § 49-4-902(11)(D). "Full-time student" includes a student with a documented learning disability who receives accommodations because of the student's disability and who is unable to take twelve (12) semester hours per semester as a direct result of the student's disability; provided, that the student takes the maximum number of semester hours that is established by the institution in which the student is enrolled as feasible for the student to attempt.

SECTION 6. Tennessee Code Annotated, Section 49-4-923, is amended by deleting subsection (g) and substituting:

(g)

(1) Subject to the amounts appropriated by the general assembly and any law relating to a shortfall in funds available for postsecondary financial assistance from the net proceeds of the state lottery, a Wilder-Naifeh reconnect

grant awarded under this section is for independent students as determined by the FAFSA. The amount of a Wilder-Naifeh reconnect grant:

(A) For students enrolled in a Tennessee college of applied technology, is the cost of tuition and mandatory fees at the Tennessee college of applied technology attended less all other gift aid, which must be credited first to the student's tuition and mandatory fees; or

(B) For students enrolled in an eligible independent postsecondary institution as defined in § 49-4-902(11)(D), is the average cost of tuition and mandatory fees at Tennessee colleges of applied technology less all other gift aid, which must be credited first to the student's tuition and mandatory fees.

(2) Notwithstanding § 49-4-902, "gift aid" as used in this section is financial aid received from a federal Pell grant, a Tennessee student assistance award, and any scholarship or grant funded from net lottery proceeds under this part.

SECTION 7. Tennessee Code Annotated, Section 49-4-944(b), is amended by deleting subdivisions (2) and (3) and substituting instead the following:

(2) "Eligible postsecondary institution" means:

(A) A postsecondary institution that is eligible for the Tennessee education lottery scholarship, as defined in § 49-4-902, on July 1, 2013, and remains eligible thereafter; and

(B) A private, nonprofit technical school that:

(i) Has had its primary campus domiciled in this state for at least seventy-five (75) consecutive years;

(ii) Is accredited by the Council on Occupational Education; and

(iii) In addition to offering diploma, certificate, and associate degree programs, offers a baccalaureate degree through an articulation agreement with a regionally accredited postsecondary institution;

(3) "Eligible program of study" means:

(A) A federal Title IV-eligible curriculum of courses leading to a certificate or associate degree; and

(B) A curriculum of courses leading to a certificate or diploma at an eligible postsecondary institution, as defined in subdivision (b)(2)(B); and

SECTION 8. This act takes effect July 1, 2025, the public welfare requiring it, and applies to students seeking postsecondary financial aid for the 2025-2026 academic year and each academic year thereafter.